

Petitioner's Request for Voluntary Waiver of Respondent's Preliminary Financial Disclosure is GRANTED. In light of the full mediation agreement that the parties reached, no appearances are necessary on July 15, 2026, unless there is a request to be heard.

Petitioner's May 22, 2026, Request for Order for Spousal Support is DENIED.

"California law provides for two distinct types of spousal support—temporary and permanent. Awards of temporary spousal support do not serve the same purpose, nor are they governed by the same procedures, as awards for permanent spousal support." (*In re Marriage of Mendoza & Cuellar* (2017) 14 Cal.App.5th 939, 942.) Temporary spousal support is meant to "allow a spouse to continue to live in the manner to which he or she is accustomed during the time the dissolution action is pending." (*Id.* at 942-943.) Here, the parties continue to reside together and, consequently, the basis for temporary spousal support is not triggered because the equitable basis for a support allocation is absent when the parties continue to live under the same roof." (see *In re Marriage of Burlini* (1983) 143 Cal. App. 3d 65.)

As to Petitioner's Request for Child Support, the request is GRANTED. Respondent is ordered to pay child support at \$4,016 per month. One-half of the payment is due on the first of each month and one-half of the payment is due on the fifteenth of each month. Each party must pay 50% of child-care costs related to employment or reasonably necessary job training. Each party must pay 50% reasonable uninsured health-care costs for the children. The court used a printout of a computer calculation and findings, which is located below and incorporated in this order. The orders are effective June 1, 2026. Respondent is ordered to pay arrears in the amount of \$250 each month. One-half of the payment is due on the first of each month and one-half of the payment is due on the fifteenth of each month.

"The guideline amount of child support, which is calculated by applying a mathematical formula to the parents' incomes, is presumptively correct." (*In re Marriage of Williams* (2007) 150 Cal.App.4th 1221, 1237.) Courts recognize that it is inconsistent for a payee parent to accept direct, in-kind support from a payor parent in the context of

maintaining a shared household and then subsequently attempt to enforce a formal monetary support order for that same period. (*Helgestad v. Vargas* (2014) 231 Cal. App. 4th 719.) A spouse seeking to reduce or offset a child support obligation based on cohabitation must present specific, admissible evidence showing the exact "in-kind" contributions made to the household and the children. (*In re Marriage of Wilson* (2016) Cal. App. 5th 1011.) Here, although Respondent raises the issue of a potential offset, he fails to provide the court with specific, admissible evidence. Therefore, the Court GRANTS Petitioner's request for child support.

2026

Guideline Summary

Monthly Figures

Fixed Shares	Father	Mother	Monthly Figures		Cash Flow	
Number of children	0	3	2026		Combined net spendable	22096
Percent time with NCP	49.99%	0.00%				
Filing status	HH/MLA	HH/MLA	Nets (adjusted)		Father	
Number of exemptions	1	4	Father	18726	Payment cost/benefit	-4016
Wages and salary	29283	2700	Mother	3370	Net spendable income	14710
Self employed income	0	0	Total	22096	Federal income tax	6523
Other taxable income	0	0	Support		Federal employment tax	1378
TANF CS received	0	0	Addons	0	State income tax	2138
Other nontaxable income	0	0	Guideln CS	4016	State employment tax	381
New spouse income	0	0	User SS	0	Total taxes	10420
Employee 401-k contribution	0	0	Total	4016	Federal filing status	HH/MLA
Adjustments to income	0	0			State filing status	HH/MLA
SS paid prev marriage	0	0			Mother	
CS paid prev marriage	0	0			Payment cost/benefit	4016
Health insurance	137	0			Net spendable income	7386
Other medical expenses	0	0			Federal income tax	-910
Property tax expenses	584	0			Federal employment tax	207
Ded interest expense	0	0			State income tax	-2
Contribution deduction	0	0			State employment tax	35
Misc tax deductions	0	0			Total taxes	-670
Qualified business income deduction	0	0			Federal filing status	HH/MLA
Required union dues	0	0			State filing status	HH/MLA
Mandatory retirement	0	0				
Hardship deduction	0	0				
Other GDL deductions	0	0				
Child care expenses	0	0				

FC 4055 checking: **ON**

Per Child Information

DOB	Timeshare	cce(F)	cce(M)	Addons Payor	Basic CS Payor	Pres CS Payor
All children	50 - 50	0	0	0 Father	4,016 Father	4,016 Father
0000-00-00	49 - 51	0	0	0 Father	761 Father	761 Father
0000-00-00	49 - 51	0	0	0 Father	1,160 Father	1,160 Father
0000-00-00	49 - 51	0	0	0 Father	2,095 Father	2,095 Father

****Please contact Judicial Courtroom Assistant, Maria Pantoja, at (831) 636-4057 x129 or mpantoja@sanbenitocourt.org with any objections or concerns.**

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END OF TENTATIVE DECISIONS